

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**
Office of City Clerk

February 8, 2010

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS: Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Pierson, Dr. Rinne and Mr. Spiker. Absent: Mr. Collins and Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Brown, and pursuant to support received by Mr. Pierson and Ms. Broyles, agenda item #16(a) was removed from the Consent Agenda. Mr. Brown moved to approve remaining Consent Agenda items, seconded by Mr. Spiker. Motion carried. Voting "yes" – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on January 25, 2010. Motion (per Consent Agenda) carried.

[CA] Minutes from Vouchers Meeting of the Governing Body on February 1, 2010. Motion (per Consent Agenda) carried.

Mr. Spiker moved to approve payment of vouchers as presented, seconded by Ms. Broyles. Upon inquiry, City Treasurer Barb Dorr reviewed information available for the following vouchers payable to: Brown's Shoe Company (\$27.50), copying and administrative fees pursuant to Police Dept. investigation records request; Reiman Corp. (\$210,257.00), Carey/Pioneer rehab. construction project; Top Shelf Enterprises LLC, (\$2,800.00), removal and discarding of structural mold/moisture damage; Lock Shop of Cheyenne Inc. (\$510.00), after hours services for Police Dept.; W. G. Dale Electric Co. (\$140.00), telephone system changes (Transit office); Ellenbecker Oil Inc. (\$24,311.61), diesel fuel purchases (Fleet Maint., Street & Alley and Sanitation); VISA charge to Audubohn Intl. (\$200.00), membership dues (Golf Director). Also providing additional information pursuant to vouchers involved in discussion were: Doug Vetter, City Engineer; Captain Jeff Schulz, Interim Police Chief; Jim Elias, Public Works Director, and Rick Parish, Parks and Recreation Director. Motion carried. Voting "yes" – all members of the governing body present.

"Ordinance amending Section 6.08.020 (B), Keeping or slaughtering of certain animals - Restrictions within City, of Chapter 6.08, Animal care and control regulations generally, of Title 6, Animals, and amending Section 6.20.010, Designation of Animal Shelter, of Chapter 6.20, Impoundment, of Title 6, Animals, of the Code of the City of Cheyenne, Wyoming." Reporting for Public Services Committee, Ms. Ash moved to approve on third and final reading, seconded by Dr. Rinne. Motion carried. Voting "yes" – all members of the governing body present. (#3882)

“Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning districts established and Section 17.08.040 Cheyenne City map of the Cheyenne City Code, by changing the zoning classification from MR-1 Medium Density Residential-established district to MUB Mixed Use with Business emphasis district for Lot 3 and the east 23-feet of Lot 4, Block 3, Alta-Vista Addition, Cheyenne, Wyoming (located south of and adjacent to E. 17th Street, west of Converse Avenue).” Ms. Ash moved to approve on third and final reading, seconded by Dr. Rinne. Motion carried. Voting “yes” – all members of the governing body present. (#3883)

“Ordinance annexing to the City of Cheyenne, Wyoming, a parcel of land being situated in Sections 12 and 13, Township 13 North, Range 67 West of the 6th Principal Meridian, Laramie County, Wyoming (located east of Southwest Drive, south of Interstate 80, west of BNSF Railroad, and north of Woodenshoe Road)” -- referred to Public Services Committee (sponsor - Ms. Ash).

“Ordinance creating Chapter 8.68, Vacant and Abandoned Residential Structures, of Title 8, Health and Safety, of the Code of the City of Cheyenne, Wyoming” -- referred to Finance Committee (sponsor - Ms. Ash).

“Resolution determining that conditions for annexation required by Wyo. Stat. §15-1-402 exist for the property described as a parcel of land being situated in the SW¼ NW ¼ of Section 21, T. 14N., R. 66W., of the 6th P.M., Laramie County, WY (located south of Plain View Road, west of Point Bluff, and north of Apache Street).” Ms. Ash moved to adopt, seconded by Dr. Rinne. Motion carried. Voting “yes” – all members of the governing body present. (#5184)

[CA] “Resolution certifying that the Governing Body of the City of Cheyenne is in agreement with the Laramie County Board of Commissioners as to the current countywide Consensus Block Grant application to the State Loan and Investment Board” -- referred to Finance Committee (sponsor - Ms. Broyles).

[CA] “Resolution authorizing the transfer of funds in the approximate amount of \$145,000 from the City’s self-funded employee health benefit plan to the general fund” -- referred to Finance Committee (sponsors - Mayor Kaysen, Ms. Broyles, Mr. Brown and Mr. Pierson).

[CA] Contract between the City of Cheyenne, Office of Youth Alternatives and Laramie County Community Partnership, Inc. to provide a range of academic and other enrichment activities to at risk school age youth at Johnson Jr. High. Motion (per Consent Agenda) carried. (#5510)

[CA] Professional Services Agreement between the City of Cheyenne and TriHydro Corp. for environmental monitoring at Happy Jack Landfill (Solid Waste Fund). Motion (per Consent Agenda) carried (amount not to exceed \$209,220.00/three year term). (#5511)

[CA] Cooperative Agreement between the City of Cheyenne and Wyoming Department of Transportation for Cheyenne Marginal-Vandehei Interchange (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried. (#5512)

[CA] Notice and Consent to Assignment of the Juvenile Housing Agreement between the City of Cheyenne and Cornerstone Programs Corporation dba Jeffrey C. Wardle Academy to Southeastern Wyoming Juvenile Services, LLC -- referred to Finance Committee.

[CA] Community Based Family Support and Preservation Grant Contract between the Wyoming Department of Family Services, Protective Services Division, and City of Cheyenne, Youth Alternatives, to provide a family counselor to assist with transitional services -- referred to Finance Committee.

[CA] Wyoming Children's Trust Fund Grant Contract between the Wyoming Department of Family Services, Protective Services Division, and City of Cheyenne, Special Friends - Youth Alternatives, for the Special Friends Outreach Program -- referred to Finance Committee.

[CA] Energy Performance Contract between the City of Cheyenne and Long Building Technologies, Inc. to provide equipment and services designed to save energy at 52 City owned facilities to include a lighting retrofit, occupancy sensor installation, modular boiler in Fire Station #1, an energy conservation education program and measurement and verification of energy savings -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and the Wyoming Department of State Parks & Cultural Resources for a Land and Water Conservation Fund Grant for a basketball court in Martin Luther King Park -- referred to Finance Committee.

Contract Modification No. 1 to Contract No. 5428 between the City of Cheyenne and Mill Brothers Landscape and Nursery, Inc., Ft. Collins, CO, for additional irrigation and ground preparation for Saddle Ridge Neighborhood Park (School Dist. Rec. Mill). Reporting for Finance Committee, Mr. Brown moved to approve in an amount not to exceed \$9,825.88, seconded by Mr. Spiker. Mr Brown moved to amend by substitute, seconded by Mr. Pierson. Upon inquiry, Rick Parish, Parks and Recreation Director, clarified an error in the wording contained in Section 1 of the document was noticed following the Finance Committee meeting, and that the substitute corrects the language. He indicated completion of the project will include sodding and seeding of some areas. Motion to amend carried. Voting "yes" -- all members of the governing body present. Main motion as amended by substitute carried. Voting "yes" -- all members of the governing body present. (#5428)

[CA] Consideration of Bid #M-11-10 for a contract between the City of Cheyenne and Reiman Corp., for the East Cheyenne Greenway, Phase IIb Project (1% Specific Purpose Sales & Use Tax). Motion (per Consent Agenda) carried (amount not to exceed \$358,328.55). (#5513)

[CA] Consideration of Bid #R-8-10 for the Surplus Sale of "Two 1993 Toro Greens Aerators" from the City of Cheyenne Golf Department -- referred to Finance Committee.

[CA] Consideration of Bid #M-13-10 for a Contract between S&S Builders, of Cheyenne, WY, and the City of Cheyenne for the Randall Bridge Enhancements Project (2007-2010 1% Sales Tax) - referred to Finance Committee.

Appointment of Shane Moore, Gale Shenefelt, Charles Livermont, Daryl Hensel, Regina Meena and Clayton Gray, to the Mayor's Council for People with Disabilities. Ms. Broyles moved to approve, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

Announcement was made of a Public Hearing to be held February 22, 2010 at 6:00 p.m. in City Council Chambers for renewal of existing City Liquor Licenses (retail, restaurant, limited

retail, resort, bar and grill licenses, and microbrewery and winery permits) filed with the City Clerk's Office.

Announcement was made that due to the President's Day Holiday, on Monday, February 15, 2010, Finance Committee will meet at 11:00 a.m. and Public Services Committee will meet at 12:15 p.m. on Tuesday, February 16, 2010, in Council Meeting Room 122; Vouchers meeting will be held in Council Chambers at Noon.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:23 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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